

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3802

By: Sneed

AS INTRODUCED

An Act relating to insurance; prohibiting insurers from increasing motor vehicle liability premiums based solely on removal of deceased spouse from policy; clarifying removal of a deceased spouse shall not be treated as a material change; clarifying section does not prevent increasing premiums at renewal for other reasons; establishing that any increase in violation shall be void; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6093 of Title 36, unless there is created a duplication in numbering, reads as follows:

It shall be unlawful for any insurer to increase a motor vehicle liability insurance policy premium based solely on the removal by a named insured of a deceased spouse from the policy. The removal of a deceased spouse shall not be treated as a material change in risk for purposes of underwriting, rating classification, or premium calculation. Nothing in this section shall be construed as to prevent insurers from increasing premiums at renewal based on either

1 documented changes in driving record, claims history, coverage
2 elections, mileage, garaging location, or other actuarially
3 supported risk factors; or rate changes approved by the Oklahoma
4 Insurance Department that are applied uniformly to a class of
5 insureds. Any premium increase imposed in violation of this section
6 shall be void and unenforceable, and the insurer shall refund any
7 excess premium collected.

8 SECTION 2. This act shall become effective November 1, 2026.

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